OPEN LETTER · EYE ON SHOALHAVEN COUNCIL

Collingwood Beach Vegetation Motion CL26.192: Questions for Cr Casmiri

Sent 22 August 2026 · To Cr Casmiri · Response requested by 12 September 2026

EYE ON SHOALHAVEN COUNCIL
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Open letter to Cr Luciano Casmiri
Notice of Motion CL26.192 — Ongoing Maintenance of Vegetation & Dune Care Action at Collingwood Beach
Ordinary Meeting, Tuesday 25 August 2026 · HPERM Ref D26/335057
Published 22 August 2026

Dear Cr Casmiri,

I am writing about your Notice of Motion CL26.192, listed for Tuesday night's Ordinary Meeting. This is an open letter. I will publish your response in full, or record that none was received.

I have read the motion against the report you yourself requisitioned eighteen months ago, against the certified Coastal Management Program, and against the CEO's note. There is a problem at the centre of it that I do not think can be fixed by amendment, and there is a second question — about your own declared interest — that only you can answer.

1. You asked this question in February 2025. Council answered it in May 2025.
On 18 February 2025 you moved CL25.29, asking the Acting CEO to report on the ongoing maintenance of the vegetation at Collingwood Beach "set out in the Action Plan adopted at the Development & Environment Committee 6 April 2021 (MIN21.176)". Your stated reason was "Overgrown vegetation causing residents' concerns and fire risk." Cr Proudfoot seconded. It carried 7–5 as MIN25.33.

The report came back on 13 May 2025 as CL25.150. Among other things it told you:

• More than $115,000 excluding GST of dune management works was delivered at Collingwood Beach between March 2022 and January 2024 — renewal of post and wire fencing at 11 Council-managed beach access tracks between Illfracombe Avenue and Susan Street; approximately 1.5 km of fencing along the shared user path; "vegetation pruning to achieve pedestrian clearance standards along all access fences and the shared user path"; weed control along the extent of the beach; sand nourishment at all managed access tracks; and 2,900 native tube stock planted for dune stabilisation.
• Two grant-supported projects relevant to Collingwood Beach are "committed for delivery through to 2028 financial year", worth $500,000 excluding GST across 24 Council-managed

beaches.
• Beach scraping at Collingwood Beach was committed to commence in April 2025 at $25,573.20 excluding GST, with contractor work continuing at Huskisson, Nelsons, Hyams and Collingwood worth a further $25,689.60.
• The Vincentia Bushcare Group has undertaken weed control along Collingwood Beach since 1998 and contributes "in the order of 500 - 600 hours of volunteer effort per year".
CL26.192 now asks the CEO to start "immediate action" on the ongoing maintenance of the vegetation set out in that same 2021 Action Plan, and describes "6 years of neglect of the Trial site".

Those two accounts cannot both be accurate. Either the report Council received in May 2025 was wrong, or the premise of Tuesday night's motion is.

2. The plan you are asking the CEO to implement has been superseded — and the May 2025 report told you so
This is the part I find hardest to reconcile. CL25.150 stated:

"Following the certification of the CMP, existing Resolutions from Council Meetings relating to coastal management that have been actioned by Council will be superseded, with the CMP to become the overarching strategy for the management of the coastal zone within the Shoalhaven."

The Shoalhaven Open Coast and Jervis Bay Coastal Management Program was adopted by Council, certified by the Minister and gazetted under the Coastal Management Act 2016 on 20 September 2024. The CEO's note on your current motion repeats the point in plain terms: the CMP "supersedes previous coastal management resolutions and plans, including the Collingwood Beach Dunecare Action Plan adopted in 2021."

CL26.192 asks the CEO to take immediate action on the 2021 plan anyway. You requested the advice. You received it. The motion is drafted as though it had never arrived.

3. Your recommendation and your Background ask for opposite things
The recommendation asks for five outcomes. Goal 1 is to increase dune stability and resilience. Goal 2 is to "maintain a healthy and functioning dune ecosystem that contributes to dune stability". Goal 5 is that the work accord with the NSW Manual of Coastal Dune Management and Rehabilitation Techniques and the Coastal Management Act 2016.

The Background then sets out what the motion is actually for. Stage 2, in your own words:

"Adopt a plan and take the appropriate actions to take the work along the length of Collingwood Beach to present views along the whole of Collingwood. Beach. The areas needing pruning and removal of inappropriate vegetation."

And Stage 3 asks Council to prepare "an addendum to the CMP for removal of the holistic vegetation plan across the Shoalhaven".

So goal 5 asks that the work accord with the Coastal Management Act, while Stage 3 asks Council to begin unpicking a program certified under that Act. Goal 2 asks for a healthy, functioning dune ecosystem, while Stage 2 asks for pruning and vegetation removal along the length of the beach so that views are presented. A councillor voting on Tuesday cannot support both halves of this motion.

There is also technical history here that the motion does not engage with. In July 2016, NGH Environmental — the consultant Council engaged to prepare the Collingwood Beach vegetation management plan — publicly rejected Council's proposal to prune to between one and 1.5 metres. Its managing director said 1.5 metres was already "very low", that "at a lower height than this the risk of tree mortality increases", and that the proposal "could further reduce tree root penetration, resulting in less dune stability". The firm asked for its branding to be removed from the modified document. Any motion that wants both lower vegetation and a more stable dune has to answer that advice, not step around it.

4. Stage 3 is a coastline-wide policy reversal, placed in the background of a maintenance motion

The item is titled as a maintenance motion for one beach. Stage 3 asks Council to strip the holistic vegetation approach out of the certified CMP and to prepare and submit to the State Government individual Vegetation Plans for Collingwood Beach "along with any other individual plans for those beaches prepared to act with a sense of urgency in 26/27, any individual Vegetation Plans for other beaches." The Background opens by describing the long-term objective as replacing the holistic approach "with Individual Vegetation Plans for the 100 beaches."

That is not maintenance. That is a reversal of Shoalhaven's adopted coastal vegetation policy across 165 kilometres of coastline, carrying an obligation to run the statutory amendment process under the Coastal Management Act 2016 — technical investigation, community consultation, Ministerial certification and re-gazettal — for up to a hundred separate plans. It arrives with no cost estimate, no staffing estimate, no timeframe beyond "urgency", and no consultation. The CEO's note records that "no resources or funding have been allocated for such a process within the current Delivery Program and Operational Plan".

A change of that magnitude deserves its own report and its own vote. It should not travel to the chamber as background material to a motion about trimming.

5. The motion has the strategic and the operational exactly the wrong way round

This is the structural criticism, and I make it without any imputation about motive.

The recommendation is operational. It asks the CEO to start immediate on-ground activities — pruning, vegetation removal, dune works. Section 335(a) of the Local Government Act 1993 gives the CEO the day-to-day management of the Council. Sequencing this year's dune maintenance is the clearest example of day-to-day management there is.

The Background is strategic. Whether Shoalhaven should manage coastal vegetation through one holistic program or a hundred individual plans is precisely a question for the governing body under section 223. It is properly yours to decide.

CL26.192 directs the operational, which is not the elected body's function, and smuggles the strategic, which is, into a background note where it attracts no report, no costing, no consultation and no vote of its own. If the motion were rewritten the other way around, I would have very little to say about it.

6. Whose concerns are these?
Your February 2025 motion cited "residents' concerns and fire risk". Tuesday's motion cites "outstanding issues of Vegetation and Storm Water".

I have searched the public record for evidence of a current community demand for this action — petitions, deputations, resident association resolutions, public statements, media coverage. I have found none since 2021. The most recent public artefact I can locate on Collingwood Beach vegetation is a November 2021 report of deliberate destruction of native trees along that beach, which Council was then investigating under its vegetation vandalism policy.

I want to be fair about what that does and does not prove. Residents contact their councillors privately every day and there is nothing improper in that. Absence from the public record is not proof that nobody asked. But a motion seeking to reverse a certified statutory program for a hundred beaches should be able to name its evidence base, and at present it does not.

7. Your declared interest, and what the Code requires of you now
I want to be precise about what I am and am not saying here.

On 18 February 2025, on CL25.29, the minutes record that you made a:

"less than significant non pecuniary interest declaration – he resides on Elizabeth Drive and Collingwood Beach is along Elizabeth Drive, not immediately next to him but in the same street – remained in the room and took part in discussion and voted."

On 23 September 2025 you made a materially identical declaration on the Illfracombe Avenue (Banksia Street), Vincentia road closure, "for the reason that the Clr lives on Elizabeth Drive, Vincentia", and again remained and voted.

I am not suggesting you have a pecuniary interest. Your published 2024/25 Annual Pecuniary Interest return discloses real property in which you hold a 50 per cent interest, with the addresses redacted as the published form provides. Nothing in the public record establishes where that property is, and I make no claim about it.

I am also not suggesting that living in your ward disqualifies you from acting in it. It plainly does not. Ward councillors are elected to represent the places they live. A councillor who could not raise a local matter because they live nearby would be no use to anyone. Clause 5.3 of the Model Code is explicit that a councillor's personal or political views are not a private interest.

The question is narrower than that, and it is about this motion rather than the last one.

In February 2025 you asked for a report. A report is conferred on everyone equally, and it is easy to see why you assessed that interest as less than significant. CL26.192 asks for something different: immediate physical works, whose stated purpose at Stage 2 is "to present views along the whole of Collingwood Beach" — the beach that fronts the street you have twice told the chamber you live in.

The Model Code sets the test at clause 5.2: a non-pecuniary conflict of interest exists "where a reasonable and informed person would perceive that you could be influenced by a private interest when carrying out your official functions in relation to a matter." Clause 5.9(f) provides that such a conflict will, as a general rule, be significant where it involves "the conferral or loss of a personal benefit other than one conferred or lost as a member of the community or a broader class of people affected by a decision." Clause 5.11 provides that where you assess a conflict as not significant, you must "explain in writing why you consider that the non-pecuniary conflict of interest is not significant and does not require further action in the circumstances."

The people to whom views along the whole of Collingwood Beach would be conferred are not the Shoalhaven community at large. They are, principally, the households that look over that beach.

I am not asserting that your interest is significant. That assessment is yours to make, and clause 5.4 puts the onus on you to make it. What I am putting to you is that an assessment made in February 2025 about a motion for a report does not automatically carry across to a motion for works whose stated object is views along the beach in your own street — and that if you assess it as less than significant again on Tuesday, clause 5.11 requires you to explain, in writing, why.

Questions
1. Do you accept the finding reported to Council on 13 May 2025 that the 2021 Collingwood Beach Dunecare Action Plan has been superseded by the certified Coastal Management Program? If not, on what basis?

1. What is the factual basis for "6 years of neglect of the Trial site", given the works, dollar figures and volunteer hours set out in CL25.150? Which of those figures do you say is wrong?

1. Stage 2 says the object is "to present views along the whole of Collingwood Beach". Do you mean to preserve existing views, or to create new ones? Please answer plainly, because the whole motion turns on it.

1. How do you reconcile Stage 2 with goals 1, 2 and 5 of your own recommendation — dune stability, a healthy functioning dune ecosystem, and accord with the NSW Manual of Coastal Dune Management and the Coastal Management Act 2016?

1. In 2016 the consultant engaged to write the vegetation management plan advised publicly that pruning below 1.5 metres increases tree mortality and reduces root penetration and dune stability. What pruning height does your motion contemplate, and what current technical advice supports it?

1. Stage 3 seeks individual Vegetation Plans for 100 beaches, with urgency, in 2026/27. What is your estimate of the cost and the staff time, and where in the Delivery Program and Operational Plan would it be funded?

1. The CEO's note advises that management actions inconsistent with the certified CMP "may expose Council to increased legal and operational risk, including the potential loss of statutory liability protections available under Section 733 of the Local Government Act 1993." Do you accept that advice? If not, what advice do you rely on instead?

1. Which residents raised these concerns with you, how many, and when? If a petition, deputation or resident association resolution exists, provide it and I will publish it in full.

1. Your February 2025 motion cited fire risk. Has the NSW Rural Fire Service advised Council of a bush fire risk arising from the Collingwood Beach dune vegetation? If so, will you table that advice on Tuesday?

1. Will you reconsider whether your interest in CL26.192 remains less than significant — and if you assess it as less than significant again, will you provide the written explanation clause 5.11 of the Model Code requires?

An amendment that would answer the same question
I want to be fair to the concern underneath this motion, because there is a real one. Is the maintenance actually being delivered at Collingwood Beach, and are the sightlines and clearances along the shared user path being kept? Those are proper questions for the governing body, and they can be answered without touching a certified statutory program.

Something along these lines would do it:

That Council request the CEO to report to Council on the implementation of CMP Action CW.06 at Collingwood Beach, including the works delivered and scheduled through to 2028 and their cost; the maintenance standard applied to pedestrian clearance along the shared user path and beach accessways and the frequency of maintenance events; the published outcome of the 2018–2020 dune vegetation trial; and any advice from the NSW Rural Fire Service on bush fire risk in the dune reserve. And further, that any proposal to amend the certified Coastal Management Program be brought to Council as a separate report setting out the statutory process required under the Coastal Management Act 2016, the timeframe, the cost and the resourcing.

That gives you and your colleagues everything the Background says you want. It produces the maintenance record and the cost. It surfaces the trial result, which has never been published. It tests the fire claim against the fire authority. And it separates the strategic question — one program or a hundred plans — so that it can be decided properly, on a report, with a price on it, instead of arriving as a footnote to a pruning motion.

If you would accept an amendment along those lines, I will report that fact as prominently as I report anything else in this letter.

I will publish this letter, and whatever reply I receive, including none.

Yours sincerely,

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Note to councillors receiving a copy of this letter: The questions above are put to Cr Casmiri on the public record before Tuesday's meeting. If you believe they warrant answers, you are in a position to put them directly in the chamber — as questions during debate, or by moving that CL26.192 be deferred pending a report on the cost and statutory process of amending the certified CMP. The CEO's note has already told the chamber that no resources or funding exist for what Stage 3 proposes. This publication will report whatever is raised and whatever is answered.

Sources relied on in this letter

• Shoalhaven City Council, Ordinary Meeting agenda 25 August 2026, item CL26.192, HPERM Ref D26/335057, pp. 73–74, including the Note by the CEO.
• Shoalhaven City Council, Ordinary Meeting 18 February 2025 — agenda item CL25.29 and minutes MIN25.33, including the Declarations of Interest.
• Shoalhaven City Council, Ordinary Meeting 13 May 2025 — item CL25.150, "Report to NoM - CL25.29 - Ongoing Maintenance of Vegetation at Collingwood Beach".

• Shoalhaven City Council, Ordinary Meeting 23 September 2025 — minutes, Declarations of Interest, item CL25.308.
• Shoalhaven Open Coast and Jervis Bay Coastal Management Program, adopted 2024, certified and gazetted under the Coastal Management Act 2016 on 20 September 2024; Action CW.06.
• Collingwood Beach Dunecare Action Plan, adopted at the Development & Environment Committee 6 April 2021, MIN21.176.
• Model Code of Conduct for Local Councils in NSW (2020), cll 5.2, 5.3, 5.4, 5.6, 5.7, 5.9, 5.10, 5.11.
• Local Government Act 1993 (NSW) ss 223, 335, 733.
• Coastal Management Act 2016 (NSW) ss 17, 18.
• "Consultants reject one metre dune prune", South Coast Register, 14 July 2016 (NGH Environmental advice).
• "Native trees deliberately destroyed along Collingwood Beach", South Coast Register, November 2021.
• Cr Luciano Casmiri, Annual Pecuniary Interest Form 2024/2025 (redacted), published by Shoalhaven City Council 1 August 2025.
